

## **Smt. Prachi Dixit vs Ashish Pandey on 18 May, 2026**

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2026:AHC:114771

HIGH COURT OF JUDICATURE AT ALLAHABAD

MATTERS UNDER ARTICLE 227 No. - 142 of 2026

Smt. Prachi Dixit

.....Petitioner(s)

Versus

Ashish Pandey

.....Respondent(s)

Counsel for Petitioner(s)

:

Arvind Srivastava, Sharique Ahmed

Counsel for Respondent(s)

:

Manas Bhargava, Babu Lal Ram

Court No. - 5

HON'BLE VIKAS BUDHWAR, J.

1. Heard Sri Manas Bhargava, learned counsel for the defendant-petitioner, and Shri Ashish Pandey, In-Person.
2. Since affidavits have been exchanged between the parties and the case is ripe for final hearing, and the parties do not propose to file any further affidavits, with the consent of the parties, the petition is being decided at the admission stage.
3. The case of the defendant-petitioner is that her marriage stood solemnized with the plaintiff-respondent on 30.01.2023. On account of matrimonial discord which stood occasioned between the couple, the same constrained the plaintiff-respondent to institute Case No. 1543 of 2023, under Section 12 of The Hindu Marriage Act before the Court of Principal Judge, Family Court, Kanpur Nagar on 04.07.2023 for dissolution of marriage dated 30.01.2023.
4. Post notice, the defendant-petitioner is alleged to have filed a written statement dated 11.12.2023 wherein, it is alleged that in paragraphs 13 and 14 of the same, the defendant-petitioner was in line with the plaintiff-respondent for dissolution of the marriage. On 04.05.2024, an application came to be preferred by the defendant-petitioner for withdrawal of the written statement dated 11.12.2023 and also for withdrawal of the vakalatnama of the earlier counsel, Sri Jitendra Shukla, which came to be rejected on 15.11.2025 on the ground that any admission so made by the parties cannot ordinarily be resiled from and, in case the parties so occasioned, it can file an additional written statement, which should be clarificatory in nature. Thereafter, the defendant-petitioner submitted another written statement dated 28.08.2024, wherein, in paragraphs 20, 21 and 22, events were depicted so as to show that there was an occasion to file the present written statement, as in a surreptitious manner, the written statement dated 28.08.2024 came to be rejected by virtue of the order dated 09.12.2025 passed by the Court of Additional Principal Judge, Family Court, Court No. 2, Kanpur Nagar, on the ground that the same was not in format and it was always open to the defendant-petitioner to file an additional written statement being clarificatory in nature.
5. Questioning both the aforesaid orders, the present petition has been preferred.
6. A counter-affidavit has been filed by the plaintiff-respondent, which is available on record, to which a rejoinder affidavit has also been filed.
7. Learned counsel for the defendant-petitioner has sought to argue that though, by virtue of the order dated 15.11.2025, the application dated 04.05.2024 for withdrawing of the written statement dated 11.12.2023 has been rejected and, by virtue of the order dated 09.12.2025, the written statement dated 28.08.2024 has been also rejected, but the said order accorded liberty to the defendant-petitioner to file an additional written statement clarificatory in nature and in compliance of the same, an additional written statement has been submitted on 06.01.2026, which is Annexure No. 3 at page 32 of the counter-affidavit, reference thereof has also been made in paragraph no.34 of the counter-affidavit.

8. Submission is that, whatever might be, once an additional written statement dated 06.01.2026 and it is the part of the record, whether numbered or not, by the court below, consideration of the same is to be done independently in accordance with law.

9. On the other hand, the plaintiff-petitioner In-person, submits that a dilatory tactics has been adopted by the defendant-petitioner, particularly when the written statement came to be filed on 11.12.2023, wherein in paragraphs 13 and 14, admissions were made. However, for the very first time, on 04.05.2024, an application came to be preferred for withdrawal of the vakalatnama of the counsel through whom the said written statement was filed and the written statement, itself shows that the conduct of the defendant-petitioner is other than bonafide and further there is nothing on record to show that any action has been taken against the counsel on whose fault and who was responsible for getting the admissions made in the written statement. Further contention is that while deciding the said application, the court below on 15.11.2025 rejected the said request but accorded liberty to file additional written statement which should be clarificatory in nature, and again the same mistake was committed on 28.8.2024 and then an order came to be passed on 09.12.2025 rejecting the additional written statement dated 28.08.2024, according liberty and leaving it open for the defendant-petitioner to file an additional written statement, which should be clarificatory in nature and once the defendant-petitioner has on 6.1.2026 filed an additional written statement, then the court below be directed to consider the same strictly in accordance with law bearing in mind that the admissions made may not be resiled. Further contention is that even in view of the provisions contained under Order 12 Rule 6 of the CPC on the basis. of the admission, the judgment was to be delivered as hearing was conducted, but on account of the transfer of the Presiding Officer, that was not done. Thus, all questions be left open in that regard. He has also invited attention towards order dated 18.09.2025 passed in Matters under Article 227 No. 11263 of 2025, Ashish Pandey versus Prachi Dixit, wherein there is a direction for disposal of the proceeding in terms of section 21B of the Hindu Marriage Act, 1955.

10. I have heard the submissions made across the Bar and perused the record carefully.

11. Facts are not in issue. It is not in dispute that proceedings under Section 12 of the Hindu Marriage Act initiated by the plaintiff-respondent against the defendant-petitioner in which on 11.12.2023, on notice, the defendant-petitioner had filed its written statement through one of his counsels, Shri Jitendra Shukla. On 04.04.2024, an application came to be preferred for withdrawal of the written statement dated 11.12.2023 with an allegation that there was certain admissions, which were not made, but under mysterious circumstances, these written statements came to be filed based upon the admissions. The said application came to be rejected on 15.11.2025 with liberty to file an additional written statement, which should be clarificatory in nature. Thereafter, on 28.08.2024 another written statement was filed, which was rejected on 09.12.2025 on the ground that the same was not as per format and thereafter, on 06.01.2026, again an additional written statement has been submitted.

12. In the opinion of this Court, once the defendant-petitioner has already filed an additional written statement on 06.01.2026 in terms of the orders dated 15.11.2025/ 09.12.2025, and the same is before the court below, then it would be the fitness of the matter that the court below shall take a

decision whether to accept or reject the same strictly in accordance with law. As regards the counter-allegations are concerned regarding admissions or no admissions, this Court, at this juncture, is not required to delve into the same, as the same would be dependent upon the orders to be passed by the court below in that regard.

13. Accordingly, interference with the impugned orders is declined. The Court of Additional Principal Judge, Family Court, Court No. 2, Kanpur Nagar, is required to pass appropriate orders on the additional written statement which is stated to have been filed by the defendant-petitioner on 06.01.2026 with most expedition, without granting unnecessary adjournments in that regard, mindful of the orders passed whereby proceedings are to be decided in terms of Section 21-B of the Hindu Marriage Act, 1955. This Court at this stage has not gone into the merits of the contents of the written statement.

14. At this stage, the plaintiff-respondent, In person, submits that perjury has been committed by the defendant-petitioner.

15. In the opinion of the Court, all these questions are left open to be raised before the court below.

16. With the aforesaid observations, the petition stands disposed of.

(Vikas Budhwar,J.) May 18, 2026 N.S.Rathour